

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2013-3425

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JEFFREY
PATTON, LICENSE NO. LPC 5259,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Professional
Counselor Examiners ("Board") and Jeffrey Patton ("Respondent") as follows:

1. Respondent was issued a license to practice as a professional counselor ("LPC") in the State of Colorado on May 5, 2009, being issued license number 5259, which expired on August 31, 2011.
2. By application received June 13, 2013, Respondent applied to reinstate his LPC to inactive status in the State of Colorado ("Application").
3. The Board has jurisdiction over Respondent, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2013-3425. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
5. Respondent admits the following:
 - a. On or about June 13, 2013, Respondent applied to reinstate his LPC to inactive status in the State of Colorado, and his request is currently pending.
 - b. On his Application, Respondent answered "yes" to question 6 which states: "Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the

manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

c. On or about February 19, 2010, Respondent pled guilty to DWAI, a misdemeanor, in Case No. 09M17146 in County Court, City & County of Denver, Colorado. He was sentenced to twelve (12) months of supervised probation.

d. Respondent failed to report the DWAI to the Board at the time it occurred.

e. Respondent admitted to a DWAI conviction.

6. By virtue of the facts admitted in paragraph 5 above, Respondent admits and the Board finds that the above conduct is a violation of §12-43-222(1)(e), C.R.S.

7. By virtue of the admissions contained in paragraph 4, Respondent specifically agrees to accept an inactive license subject to the terms and conditions outlined below. Respondent further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Respondent a license. Respondent consents to the following limitations to his inactive license within the meaning of §24-4-104(11), C.R.S. Respondent acknowledges that by accepting this inactive license in lieu of a formal hearing, Respondent waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

8. Respondent is not currently practicing professional counseling in the State of Colorado. Should Respondent seek to resume the practice of professional counseling in the State of Colorado, he must first notify the Board in writing of his intent to resume practice in the State of Colorado and submit an application to reinstate his LPC to active status.

PROBATION

9. If Respondent’s LPC is reinstated to active status and the Board authorizes Respondent to resume practice in Colorado, Respondent’s license to practice professional counseling in the State of Colorado will hereby be placed on probation for one (1) year commencing from the date Respondent is reinstated to active status. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

10. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

11. Respondent shall report to the Board if he discontinues the practice of professional counseling and Respondent shall notify the Board in writing upon resuming the practice of professional counseling.

12. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC in the State of Colorado and is in full compliance with all terms of this Order.

13. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

14. During the period of probation, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Respondent. Respondent shall use such habit-forming drug or controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

TERMS AND CONDITIONS

15. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

16. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

17. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

18. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

19. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

20. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

21. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

22. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

23. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

24. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

25. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

26. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT

 11/20/13
JEFFREY PATTON
LPC NO. 5259

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


JACQUILINE ARCELIN
Program Director

Effective this 25 day of
November, 2013.